

Section L - Instructions, Conditions, and Notices to Bidders (ITB) (Two-Step)

1.0 General Instructions

1.1. The government plans to award a single construction contract for the project described in the Solicitation, Offer and Award SF 1442 Request for Proposal (RFP) in accordance with (IAW) the statement of work (SOW) drawings, and specifications. All project documents and requirements will be posted on <https://sam.gov/> to allow all bidders the opportunity to download, receive and review for preparation for submission of proposal.

1.2. Contract award will be made utilizing the two-step sealed bidding procedures described in Federal Acquisition Regulation (FAR) Subpart 14.5, as supplemented in the Defense Federal Acquisition Regulation Supplement (DFARS) and Department of the Air Force Federal Acquisition Regulation Supplement (DAFFARS). Step-one consists of the request for submission, evaluation, and (if necessary) discussion of a technical proposal. No pricing is involved. Step-two involves the submission of sealed priced bids by those who submitted acceptable technical proposals in step one.

1.3. Contract award will be made to the Bidder who is determined technically acceptable in step-one with the lowest evaluated price in step-two, considering only price and the price-related factors specified elsewhere in the solicitation IAW FAR 52.214-10 - Contract Award-Sealed Bidding. This section of the Instructions to Bidders (ITO) provides general guidance for preparing proposals as well as specific instructions on the format and content of the proposal. The Bidder's proposal must include all data and information requested by the ITO and must be submitted in accordance with these instructions. Any Bidder who submits an incomplete package may be considered ineligible for award. The bid shall be compliant with the requirements as stated in the Statement of Work (SOW), attachments, and appendices. Non-conformance with the instructions provided in the ITO may result in an unfavorable proposal evaluation.

1.4. The bidder's completed proposal shall consist of the completed and signed RFP, to include any amendments issued, with a cover letter delineating any exceptions taken to the RFP terms and conditions with accompanying rationale. However, bidders are cautioned that any noncompliance with the terms and conditions of the RFP may cause their proposal to be determined ineligible for award.

1.5. The proposal shall be clear, concise, and shall include sufficient detail for effective evaluation and for substantiating the validity of stated claims. The proposal should not simply rephrase or restate the Government's requirements but rather shall provide convincing rationale to address how the Bidder intends to meet these requirements. Bidders shall assume that the Government has no prior knowledge of their facilities and experience and will base its evaluation on the information presented in the bidder's proposal.

1.6. Submit only one proposal for the project, if multiple proposals or proposal options are submitted, it may cause your submission to be technically unacceptable. Your proposal, to

include work plan, price, and bid bond must be provided to this office not later than the response stated on the SF 1442, block 13a, or amendment if applicable.

1.7. The Contracting Officer (CO) and Contract Specialist (CS) are the sole points of contact for this acquisition and communications should include both the CO and CS. Exchanges of information between government and bidders will be controlled by the CO. Written requests for clarification should be sent via email to the CO and CS.

Points of Contact Email Addresses:

CO – Sharla Flowers at sharla.flowers_brandon.1@us.af.mil

CS – Michael Johnson at michael.johnson.404@us.af.mil

1.8. Email may be used to transmit the proposal and must include “Project Number (ex: WWYK123456) and Proposal Submission” in the subject line of the email. If proposal documents are over 10MB in size it is recommended to submit an email request to the CO and CS to utilize DoD Safe for proposal submission as the email firewall may not allow proposal to be received. DoD Safe, <https://safe.apps.mil/>, will forward the Bidder an e-mail to drop-off proposals and other requested documents. If the Bidder does not receive the e-mail from DoD Safe, the Bidder will need to check SPAM and JUNK folders before requesting another DoD Safe link with the CO and CS.

1.9. When submitting proposal information, file suppression utilities, to include but not limited to zip files, will not be accepted. When using either type of transmission, the bidder is recommended to send a follow-on email to the CO and CS to verify if proposal submission was received.

1.10. Do not provide any password protected files as part of the proposal. The electronic copies of the proposal shall be submitted in a format readable by Microsoft (MS) Word 2007, 2010, or 2013, MS Excel 2007, 2010 or 2013, MS-Power Point 2007, 2010, or 2013, and MS-Project 2013, and Adobe Acrobat Portable Document Format (PDF), as applicable. Do NOT submit any documents in PDF format that are copied as “images.” When creating PDF files always create to enable textual search and copy functions.

1.11. The CO will promptly notify bidders of any decision to exclude them from the competition, whereupon they may request and receive a debriefing IAW FAR 15.505. Bidders excluded from the competition may request a pre-award debriefing or they may choose to wait until after the source selection decision to request a post-award debriefing. However, bidders excluded from the competition are entitled to no more than one debriefing. The CO will notify unsuccessful bidders in accordance with FAR 15.503. Upon such notification, unsuccessful bidders may request and receive a debriefing. Bidders desiring a debriefing must make their request IAW the requirements of FAR 15.505 or 15.506, as applicable.

1.12. If a bidder believes that the requirements in these instructions contain an error, omission, or are otherwise unsound, the bidder shall immediately notify the CO in writing with supporting rationale as well as the remedies the bidder is asking the CO to consider as related to the omission or error. The bidder is reminded that the government reserves the right to award this effort based on the initial proposal, as received, without discussions. This reservation includes

matters of additional submittals of the initial proposal.

1.13. If this RFP is amended, all terms and conditions that are not amended remain unchanged and in full force and effect. Bidders shall acknowledge receipt of any amendment and provide confirmation upon submission of the bidder's proposal. Any unacknowledged amendments in the bidder's proposal will render the bidder ineligible for award.

1.14. Proposals and modifications to proposals shall be submitted via previously mentioned submittal methods addressed to the CO and CS.

1.15. The government intends to award without exchanges; therefore, the proposal should contain the bidder's best terms. However, the government reserves the right to conduct exchanges if deemed in its best interest. Exchanges are interactions between the CO and the bidder and may address any aspect of the proposal. Bidder responses to exchanges will be considered in making the award selection decision.

1.16. Each page containing proprietary information should be so marked.

1.17. Page Size and Format

1.17.1. A page is defined as each face of a sheet of paper containing information. When both sides of a sheet display printed material, it shall be counted as two pages. Page size shall be 8.5 x 11 inches, not including foldouts. Page line spacing shall be 1.5 lines. Except for the reproduced sections of the solicitation document, the text size shall be no less than Arial 12 points. Tracking, kerning, and leading values shall not be changed from the default values of the word processing or page layout software. Use at least 1-inch margins on the top and bottom and 3/4-inch side margins. Pages shall be numbered sequentially. These page format restrictions shall also apply to responses to Evaluation Notice (ENs). These limitations shall apply to both electronic and hard copy proposals.

1.17.2. Legible tables, charts, graphs and figures shall be used wherever practical to depict organizations, systems and layout, implementation schedules, plans, etc. These displays shall be uncomplicated and shall not exceed 11 x 17 inches in size. Foldout pages shall fold entirely within the volume, and count as a single page. Foldout pages may only be used for large tables, charts, graphs, diagrams and schematics, not for pages of text. The following limitation only applies to the Technical Volume. Text intended for evaluation within all figures, charts, tables, and graphs, to include imbedded images, shall be no less than Arial 8-pt. These limitations shall apply to both electronic and hard copy proposals. Any text within figures, charts, tables, and graphs which do not meet this requirement will not be considered in the evaluation. These limitations shall apply to both electronic and hard copy proposals.

1.17.3. Initial Site Visit – An initial site visit will be conducted per FAR 36.000 as soon as practical after RFP is distributed. Initial site visit will allow the bidders and sub-contractors to view that project location and compare to the SOW and Drawing requirements. No questions are to be asked during the initial site visit to limit the possibility of a competitive advantage. All questions will be required to be submitted via email to the CO and CS shortly after initial site visit as request for information (RFI). RFIs are to be written within the email or on a Word

document. All bidder's RFIs will be compiled and will receive Government responses. RFI Government responses will be posted on <https://sam.gov> as soon as practical to allow the bidders to review responses for inclusion within their proposals.

1.17.4. Bidders must attend the initial site visit to be considered eligible for submission of proposal. Bidders not attending the initial site visit will be considered as unresponsive and not eligible for submission of proposal; any proposals received from bidders that did not attend the initial site visit will not be reviewed for technical evaluation.

2.0. Step One – Technical Proposal

2.1. Minimum Bid Acceptance Period - The minimum bid acceptance period is specified on the RFP.

2.2. In step one, bidders shall submit a technical proposal containing the information required in Factor 1 – Technical of this ITO. Step one technical proposals shall not include prices or pricing information. Material type and quantities are required, but no cost information will be provided in step one. Each bidder is to submit one technical proposal.

2.3. Bidders should submit proposals that are acceptable without additional explanation or information. The Government may make a final determination regarding a proposal's acceptability solely based on the proposal as submitted.

2.4. The Government may proceed with step two without requesting further information from any bidder; however, the Government may conduct administrative exchanges or discussions to request additional information from an bidder of a proposal that it considers reasonably susceptible of being made acceptable and may discuss proposals with the bidder.

2.5. The Government will not establish a formal "opening" and "closing" of discussions and will not request final proposal revisions. Since final proposal revisions will not be requested, each bidder is put on notice that all updates to the technical proposal will be provided at the time of the request for additional information, and all additional information will be considered incorporated into the proposal as the revised final offer.

2.6. When a technical proposal is found unacceptable (either initially or after submission of additional information), a notice of unacceptability will be forwarded to the bidder upon completion of the proposal evaluation and final determination of unacceptability IAW FAR 14.503-1. Bidders determined technically unacceptable may request either a pre or post award debriefing. Bidders are entitled to only one debriefing either pre or post award per proposal. Bidders desiring a debriefing must make their request IAW the requirements of

FAR 15.505 or 15.506.

- 2.7. Bidders with technically acceptable proposals will be informed to process through Step Two for providing proposal pricing.

2.8. Factor 1 – Technical

2.9. In the Technical Proposal, address your proposed approach to meeting the minimum performance or capability requirements of the technical requirements identified in the RFP. The technical proposal should be specific and complete. Legibility, clarity, and coherence are very important. Your responses will be evaluated against the technical subfactors defined in Section M - Evaluation Factors for Award. Using the instructions provided below, provide as specifically as possible the actual methodology you would use for accomplishing/satisfying the technical subfactors. All the requirements specified in the RFP are mandatory. With your proposal submission, you are representing that your company will perform all the requirements specified in the RFP. Mere recitation of the RFP requirements, or phrases that refer to the government's SOW, without sufficient supporting information as to how work will be accomplished will not be accepted and could lead proposals to be found technically unacceptable. Narratives shall provide detail of sufficient level to allow one skilled in engineering and the building trades to make a sound decision as to the technical viability of the proposal. The technical volume shall include:

a) Technical Proposal Cover Sheet. The technical proposal shall include a cover sheet containing date, RFP number, project number and title, bidder contact information, and assertion the proposal meets the mandatory completion date stated in the RFP or attachments.

b) Project Narrative. The project narrative shall clearly demonstrate the bidder's understanding of the project scope by including the following information:

- 1) Project synopsis (description)
- 2) Proposed method of accomplishing the work
- 3) Type of site field verification performed
- 4) Anticipated user impacts
- 5) Protection of government property during construction
- 6) Supplemental drawings/sketches
- 7) In-house design calculations
- 8) Estimating notes
- 9) Take-off calculations to justify quantities used in proposal (includes Subcontractor's calculations)
- 10) Manufacturer supplied drawings / calculations
- 11) Catalog/product technical information
- 12) Assumptions
- 13) Clarifications and exceptions
- 14) Supporting documentation

2.10. Technical Subfactor 1: Capability and Management

2.10.1. Describe capability and commitment to support an on-site management team, including a sole source of responsibility for both design and construction of this project IAW Section 1.3 within the SOW.

2.10.2. Describe how your organization will manage, supervise, and coordinate the subcontractor's work and who in the organization will be responsible for this management and coordination that is required IAW Section 1.3 of the SOW.

2.10.3. Describe how warranty support, unforeseen site conditions, design errors, etc. will be handled by your organization IAW the Warranty of Construction Clause FAR 52.246-21 and the Differing Site Condition Clause FAR 52.236-2.

2.10.4. Provide a Team List of the primary point of contacts IAW Section 1.3 Contractor Specific Requirements within the SOW.

2.11. Technical Subfactor 2: Schedule and Planning

2.11.1. The bidder shall include a proposed construction schedule that meets or improves the mandatory completion date stated in the RFP. The bidder's proposed schedule shall demonstrate a reasonable and realistic sequence of activities which represent all work to be performed throughout the entire order performance period, while considering the major work elements from the detailed price proposal, as well as submittal reviews, mobilization, material delivery times, anticipated weather delays, and final inspection/closeout IAW Section 3.3 of the SOW.

2.11.2. In developing the schedule, note that there will be submittals; milestones (such as final inspections); and construction-related permits/requests (such as Outage/Closure Requests or Excavation Permits) that will require longer lead times for Government coordination/approval listed in section 3.3 of the SOW.

2.11.3. Specific timelines for staging area approvals, airfield waivers, outage requests and other Government approvals are provided in the SOW Section 3.3 in table listed as "Delivery Schedule & Submittals".

3.0. Step Two – Pricing Proposal

3.1. In Step Two, only bids based upon technical proposals from step one that are determined to be acceptable, either initially or as a result of discussions, will be considered to continue to step two and for resultant award. Each bid in step two must be based on the bidder's technical proposal and additional information submitted in step one. The Government intends to incorporate the successful bidder's technical proposal into the resultant contract. The successful bidder shall perform all requirements as stated in the contract schedule to include all attachments and the bidder's technical proposal.

3.2. The Government reserves the right to adjudicate administrative issues regarding a

bidder's submission in step two for the purpose of ensuring responsibility matters are resolved, contract document omissions or errors, or other similar administrative matters. The Government will not hold discussions for the purpose of allowing a bidder to change their proposal price bid or matters related to their technical proposal.

3.3. In the price proposal, the bidder shall provide a fully supported price proposal. Compliance with these instructions is mandatory and failure to provide all the required data may result in a bidder being determined ineligible for award. The bidder shall provide a detailed price proposal describing each element of the design and/or construction effort. Design and construction price shall be provided IAW the contract line item (CLIN) structure as requested in the RFP. The proposal pricing shall provide the following supporting documentation so that the government team can evaluate the reasonableness, balance and realism of your proposed price. All pricing information shall be addressed ONLY in the Proposal Price documentation.

3.4. The Proposal Pricing shall include the following:

3.5.

a) Proposal Price Cover Sheet. The price coversheet shall include date of proposal, RFP number, project number and title, bidder contact information, individual CLIN prices and the total evaluated price (TEP). **During the bid opening process, only the bidder's proposal price cover sheet will be opened and shown for the total proposal price.** Provide the name, title, telephone number, and email address for the company/division point of contact regarding decisions made with respect to your proposal and who can obligate your company contractually. Also, identify those individuals authorized to negotiate with the government.

b) The TEP will be calculated as the sum of the bidder's proposed prices for all CLINs and all options (if applicable). TEP will be used for evaluation purposes only. Evaluation of options (if applicable) shall not obligate the Government to exercise such options.

c) Detailed Proposal Price

1) Design proposal price shall include proposed labor categories, labor hours per category, and labor rates per category. The design price shall be submitted as a total design price with a breakout of design and non-design price that demonstrates compliance with DFARS 236.606-70, Statutory Fee Limitation.

2) Construction proposal price shall be broken out/subtotaled per the divisions defined by the Construction Specifications Institute (CSI) Master Format System. The bidder shall submit construction price proposals utilizing AF Form 3052, Construction Price Estimate Breakdown or a bidder generated equivalent that provides the same information.

3) Construction proposal price shall be detailed enough for government reviewers to determine the bidder's understanding of the work to be performed and that the proposal is complete (ensure that includes all work items). Proposal prices shall be broken down to at least CSI Level IV.

d) Price Supporting Documentation. The bidder shall provide supporting documentation which demonstrates how the bidder arrived at the proposed price. Documentation the bidder shall submit are listed below. This includes but is not limited to:

- 1) Subcontractor quotes
- 2) Supplemental drawings/sketches
- 3) In-house design calculations
- 4) Estimating notes
- 5) Take-off calculations to justify quantities used in proposal (includes subcontractor calculations
- 6) Manufacturer supplied drawings/calculations
- 7) Catalog/product technical information
- 8) The government reserves the right to ask for additional details during the evaluation of bidder's proposals for the purpose of clarification. Any request that would result in a proposal change will be accomplished through formal discussions.

e) Price Assumptions

f) Clarifications and Exceptions

g) Subcontractor quotes. Pricing for subcontracted work shall comply with the following requirements:

- 1) Subcontractor quotes shall provide the same level of detail and include supporting documentation as described in section 3.2(b), "Detailed Price Proposal".
- 2) Subcontractor quotes should be based on the best value offered from at least two vendors.
- 3) Contractor shall provide a copy of the quotes as part of the proposal package.
- 4) In the event that the minimum of two (2) acceptable vendors cannot be obtained (only one supplier, potential suppliers/subcontractors are unresponsive or respond with 'no bid', etc.), a justification for the single quote shall be submitted as a part of the proposal package.

3.6. Bidder's pricing proposal will be evaluated for reasonableness, balance, and realism. Unreasonable and/or unrealistic proposed prices, initially or subsequently, may be grounds for eliminating a proposal from competition. Additionally, unbalanced pricing may pose an unacceptable risk to the government and may render a bidder's proposal ineligible for award. The offers should be sufficiently detailed to demonstrate their price reasonableness and balance. The burden of proof for credibility of proposed prices rests with the bidder.

3.7. The Government will evaluate proposals for price realism to determine whether proposed prices are based on an adequate understanding of contract requirements and to ensure the proposed price does not pose an unacceptable risk to performance. Bidders shall provide sufficient rationale describing how prices were developed (such as assumptions, historical data, projections, expertise, management decisions, etc.). All proposed prices shall be sufficient and adequately proposed to ensure performance is not at an unacceptable risk with prices proposed

too low

3.8. The government will evaluate proposals for reasonableness to include completeness. For completeness, bidders must propose pricing for all CLINs except for those labeled as “not separately priced (NSP)”. Normally, price reasonableness is established through adequate price competition but may also be determined through proposal analysis techniques. The burden of proof for credibility of proposed prices rests with the bidder. Bidders shall provide sufficient rationale describing how prices were developed (such as assumptions, historical data, projections, expertise, management decisions, etc.).

3.9. The government will evaluate proposals for balance. The bidder is cautioned against submitting an offer that exhibits unbalanced pricing. Unbalanced pricing may increase performance risk and could result in payment of unreasonable or unrealistic prices. An offer could be so grossly unbalanced that acceptance of the offer would be tantamount to allowing an advanced payment. For this acquisition, balanced pricing is determined with respect to CLIN pricing variance. Bidders shall provide rationale for any proposed CLIN price increase greater than 5% from one year to another, or any proposed CLIN price decrease from one year to another. Unexplained price variances from year-to-year could suggest unbalanced pricing. It is in the Bidder’s best interest to provide explanations or supporting rationale for any significant annual CLIN price variances.

3.10. The government will evaluate the proposals for compliance with DFARS 236.606-70, Statutory Fee Limitation, as applicable, if design is part of the contract requirement. If applicable, the bidder shall clearly state the design and non-design fees in accordance with DFARS 236.606-70.

3.11. FAR Part 15 applies to this acquisition. IAW FAR 15.403-3-1(b), prices based on adequate price competition do not require submission of certified cost or pricing data. In accordance with FAR 15.403-3(a), however, information other than certified cost or pricing data may be required to support price reasonableness. FAR 15.403-3(a)(1) provides for obtaining information other than certified cost or pricing data if needed to determine price reasonableness. Therefore, the FAR does not preclude the requirement for obtaining other than certified cost or pricing data under certain circumstances and the government reserves the right to obtain data as appropriate. Should the CO determine proposed prices to appear unreasonable or the possibility that a bidder does not fully understand the requirement, the bidders may be required to support price reasonableness via other than certified cost or pricing data. If, after receipt of proposals, the CO determines that there is insufficient information available to determine price reasonableness and none of the exceptions in FAR 15.403-1 apply, the bidder shall be required to submit certified cost or pricing data.

3.12. All dollar amounts shall be rounded to the nearest cent. All rates shall be rounded to four decimal places to the right of the decimal point.

3.13. Provide assumptions regarding usage of all government property as reflected in your pricing proposal.

4.0. Order Volume

4.1. The purpose of this volume is to provide information to the government for preparing the order document and supporting file. The bidder's proposal shall include a signed copy of the solicitation SF1442 and all amendments.

4.2. Exceptions to Solicitation Requirements.

Bidders are required to meet all requirements, such as terms and conditions, representations and certifications, delivery and technical requirements, in addition to those identified as evaluation factors or subfactors. Failure to meet a requirement may result in a bid being rejected IAW FAR 14.404-2.

4.3. The bidder shall provide required information to complete clauses as required. Bidders shall ensure that all clauses and provisions that require “fill-in” information are appropriately completed, including the proposed prices associated with the contract line items in the Schedule of the RFP.

4.4. Bid Guarantee (Bond): A bid guarantee (minimum of 20% of proposal) is required IAW FAR 28.101-1. Failure to furnish a bid guarantee in the proper form and amount may be a cause for rejection of your bid.

4.5. The proposal acceptance period (validity) is specified on the SF 1442, block 13d of the model contract/solicitation. The bidder shall make a clear statement in the proposal documentation that the proposal is valid until this date.

4.6. The bidder shall provide a statement the bidder has completed the annual representations and certification electronically via the SAM website at <https://www.sam.gov/SAM/>. After reviewing the SAM database information, the bidder verifies by submission of this offer that the representation and certifications currently posted electronically.

4.7. In accordance with DFARS 252.204-7019, the Bidder must have a current assessment (*i.e.*, not more than 3 years old) (see 252.204–7020) for each covered contractor information system that is relevant to the bid in the Supplier Performance Risk System at <https://www.sprs.csd.disa.mil/>. If the assessment score falls short of 110 or reveals a negative value, the contractor shall submit a Plan of Action and Milestone (POA&M) developed IAW NIST SP 800-171. The POA&M shall explain how the deficiencies will be addressed and how the failing items will be remediated. A Bidder that is not compliant with the requirements addressed in this paragraph may be ineligible for award at step two even if the bidder is the apparent low bidder in step two.